

#	Case Name	Tentative
		duplicative proceedings and the potential of inconsistent verdicts. Defendants Tush Law, LTD and Alan Turlington argue that prejudice would result from consolidation because Olen's claims in this matter would no longer be subject to jurisdictional limits applicable to a limited civil case. The Court finds that the prejudice, if any, that could result from Olen's action becoming reclassified as unlimited jurisdiction is far outweighed by the gross inefficiency involved in treating these matters as separate for pre-trial purposes. Permitting these actions to proceed separately for pre-trial purposes will lead to unnecessary duplication of efforts in conducting (and resolving disputes in) discovery and otherwise bringing these closely related matters to trial. Furthermore, Defendants have not shown the type of prejudice that would justify leaving these matters as separate proceedings. (See, e.g. <i>State Farm Mutual Auto Ins. Co. v. Superior Court</i> (1956) 47 Cal.2d 428, 430-432 [prejudice from consolidation that would result in a party having to take inconsistent positions at trial].) This case (Olen Commercial Realty Corp. v. Tush Law, LTD (2023-01354690) shall be considered the lead case. All documents and other papers need only be filed in this case. The caption for all subsequent filings shall include the caption and case number for this case, followed by the case number of the other consolidated matter. The stay of the cross-complaint is lifted. The trial of the consolidated matter will remain on March 29, 2027. The mandatory settlement conference will remain on February 26, 2027. Olen shall give notice of this ruling.
54.	Knypstra Zermeno LLP v. Sheldon 2024-01446546	Cross-defendant Knypstra Hermes LLP's motion to compel arbitration is GRANTED. (Code Civ. Proc., § 1281.2 [authorizing motion].) The court orders the entire action stayed, pending completion of arbitration of the claims in the Cross-complaint. (Code Civ. Proc., § 1281.4.) The court sets a status conference re: binding arbitration for January 22, 2027 at 9:00 a.m. Cross-complainants' request for judicial notice (ROA 86) is GRANTED, limited to the fact that the documents were filed, but not of the truth of their contents. (Evid. Code, § 452, subd. (d) [court records]; <i>In re Vicks</i> (2013) 56 Cal.4th 274,

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		314 ["while courts are free to take judicial notice of the <i>existence</i> of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files;" emphasis in original; internal citation omitted]; <i>Williams v. Wraxall</i> (1995) 33 Cal.App.4th 120, 130, FN 7 [judicial notice of truth of matters in court records ordinarily limited to orders, statements of decision, and judgments].) Cross-defendant's request for judicial notice submitted with the Reply (ROA 94) is DENIED. (Evid. Code, § 453, subd. (a) [request for judicial notice requires "[g]iv[ing] each adverse party sufficient notice of the request, through the pleadings or otherwise, to enable such adverse party to prepare to meet the request"]; Bus. & Prof. Code, § 6204, subd. (e) [with exceptions not relevant here, "the award and determinations of the arbitrators shall not be admissible nor operate as collateral estoppel or res judicata in any action or proceeding"]; <i>Soukup v. Law Offices of Herbert Hafif</i> (2006) 39 Cal.4th 260, 295 [court is not required to take judicial notice of irrelevant documents].) Moving cross-defendant met its burden to show a written arbitration agreement exists that covers plaintiffs' claims. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 ["Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence"]; <i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 164-166 [three-step process]; Knypstra Decl., ¶ 2, and Ex. A thereto [Cross-complaint alleging breach of Legal Services Agreement ("Agreement"), and Ex. A thereto, requiring arbitration at § 14].) Cross-complainants do not deny the existence of the Agreement, or that it applies to their claims in the Cross-complaint. Cross-complainants fail to show moving cross-defendant waived the right to arbitrate. (<i>Quach v. California Commerce Club, Inc.</i> (2024) 16 Cal.5th 562, 573 [waiver factors]; <i>St. Agnes Medical Center v. PacifiCare of California</i> (2003) 31 Cal.4th 1187, 1195 ["waivers are not to be lightly inferred and the party seeking to establish a waiver bears a heavy burden of proof"].) Cross-complainants argue waiver based on Knypstra Zermeno LLP litigating the claims in the Complaint. However, the subject Agreement is between cross-complainants and Knypstra Hermes, LLP, a different entity than plaintiff Knypstra Zermeno LLP. While cross-complainants contend that plaintiff Knypstra Zermeno LLP is

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		the successor to Knypstra Hermes, LLP, this is not supported by the evidence. (Knypstra Decl., ¶¶ 4-6 [alleged unpaid services which are the subject of the Complaint were performed by Knypstra Zermeno LLP, and are outside the scope of the subject Agreement]; <i>Benaroya v. Willis</i> (2018) 23 Cal.App.5th 462, 469 [“Numerous cases confirm the general rule that ‘a party cannot be compelled to arbitrate a dispute that he or she has not agreed to resolve by arbitration;’” citations omitted].) Further, Knypstra Zermeno LLP did unsuccessfully seek voluntary arbitration of the claims in the Complaint prior to initiating this action. (<i>Id.</i>, ¶ 6.) Moreover, even if the evidence showed that Knypstra Zermeno LLP is the successor to Knypstra Hermes, LLP, successor liability is not automatic, and cross-complainants have not shown successor liability applies here. (See <i>Ray v. Alad Corp.</i> (1977) 19 Cal.3d 22, 28 [“the rule ordinarily applied to the determination of whether a corporation purchasing the principal assets of another corporation assumes the other's liabilities ... states that the purchaser does not assume the seller's liabilities unless (1) there is an express or implied agreement of assumption, (2) the transaction amounts to a consolidation or merger of the two corporations, (3) the purchasing corporation is a mere continuation of the seller, or (4) the transfer of assets to the purchaser is for the fraudulent purpose of escaping liability for the seller's debts”].) Finally, the court is not persuaded that it should exercise its discretion to deny arbitration based on the possibility of conflicting rulings between the instant action and <i>Knypstra Zermeno, LLP v. Chang</i>, OCSC Case No. 30-2026-01565092. (Code Civ. Proc., § 1281.2, subd. (c).) Moving party shall give notice of this ruling.
55.	Bank of the West v. David Griffiths & Company, Inc. 2023-01303207	Plaintiff and Judgment Creditor Bank of the West’s Motion for an Assignment Order and Restraining Order is GRANTED. Judgment Creditor Bank of the West seeks an assignment order for the right to payments due or to become due from any and all clients of the Judgment Debtors. Under Code of Civil Procedure section 708.510, “upon application of the judgment creditor on noticed motion, the court may order the judgment debtor to assign to the judgment creditor . . . all or part of a right to payment due or to become due, whether or not the right is conditioned on